

The complaint

Mr B complains Royal & Sun Alliance Insurance Plc ('RSA') unfairly declined a storm damage claim he made under his buildings insurance policy. Mr B is represented in this complaint by his father-in-law. But to keep things simple, my decision will only refer to Mr B.

What happened

Mr B had a buildings insurance policy with RSA, which included accidental damage cover.

After staying with his partner during lockdown, Mr B returned home and found his kitchen flat roof was damaged, causing internal water damage to his kitchen. He thought this was caused by a storm about a month earlier, so he called RSA to make a claim. RSA sent a surveyor to inspect the damage. The surveyor said it was caused by wear and tear and not a storm event. So RSA declined Mr B's claim.

Mr B complained to RSA. It agreed to pay for the internal damage to Mr B's kitchen but not the external roof repairs. Mr B remained unhappy. He said RSA had told him, in his claim call, that he could make a repair to stop things getting worse - but the repair had covered evidence of a single storm event damage. And the surveyor hadn't inspected thoroughly since they only used a camera and pole, hadn't listened when Mr B advised that only one roof area was damaged because the rest had been well maintained, and hadn't told Mr B their findings. Mr B also said RSA contradicted itself by accepting that a storm caused internal damage to the kitchen but not that it also damaged the kitchen roof.

RSA didn't change its position, so Mr B referred his complaint to our service. He said the ferocity of the storm caused a corner of the kitchen flat roof to lift in an area up to about a foot wide. And he had to wait for RSA to call him back to agree that he could do a temporary repair, so the damage got worse. Mr B said he inspected the roof and found no sagging or warping of the roof boards or joists. And that a storm caused the damage and the roof was well maintained.

Our investigator didn't uphold Mr B's complaint. He thought RSA had fairly relied on the surveyor's report to decline the claim for roof damage, in line with the policy's 'wear and tear' exclusion.

Mr B disagreed. He reiterated some of the points he'd previously made to our service, and clarified the purpose of a leak solution that had been applied to the roof. And he felt very strongly that RSA should provide recordings of the two claim calls he'd had with it – he thought RSA should evidence these conversations, otherwise Mr B should be given the benefit of the doubt.

As Mr B disagreed with our investigator, his complaint came to me for a decision. I issued my provisional decision on 4 March 2021. In it, I said as follows:

'The crux of Mr B's complaint is that his claim hasn't been paid in full – he says it's contradictory of RSA to pay for internal repairs due to storm damage but not external repairs. So I need to consider whether RSA has acted fairly here.'

The terms and conditions of Mr B's policy say it will only cover damage to Mr B's home caused by specific events listed in the policy – one of these is 'Storm or Flood'. And the policy terms also say loss or damage caused by wear or tear or anything that happens gradually won't be covered.

When Mr B made his claim, he thought the damage had been caused by a storm about a month before. But I've checked the weather reports for the area where Mr B lives and they show there were no storm conditions around a month before he made his claim.

Further, RSA's surveyor's report says there's no evidence of any storm damage and that the damage is all consistent with a natural breakdown of materials over a period of time - in other words, wear and tear. I know Mr B has concerns about the surveyor inspecting with a camera and pole instead of getting onto the roof, but the surveyor's report includes clear and detailed photographs showing that in places, the felt is pulling away from the edges and the roof surface is somewhat uneven. Mr B says the roof shows no signs of sagging or warping and that it is well-maintained. But other than his testimony, I've not been provided with any supporting evidence of this.

Given that weather reports show there weren't storm conditions, and that RSA's surveyor concluded the roof damage was consistent with wear and tear rather than storm damage, I'm satisfied it was reasonable for RSA to conclude wear and tear was the main cause of the external roof damage, and not an insured storm event. Even if I accept that poor weather made the roof worse, it's still the case that wear and tear was the primary cause of the damage and not a storm. So it was reasonable for RSA to conclude the roof damage was due to wear and tear. Wear and tear isn't covered under Mr B's policy, so it was fair for RSA to decline Mr B's roof claim under the buildings insurance part of his policy.

Regarding the internal damage to Mr B's kitchen, the surveyors report said it was caused by rainwater ingress over a period of time. It said '...the recent rain has come through the roof into your property. The surveyor believes that the internal damage is not the result of a single identifiable storm incident.' So the surveyor thought this wasn't caused by a storm event, but by rainwater coming in through the roof.

However, it seems RSA considered this internal kitchen damage under the accidental damage part of Mr B's policy. And while the policy terms say loss or damage caused by wear or tear or anything that happens gradually won't be covered, RSA agreed to pay for the internal damage to Mr B's kitchen because it says it can't be certain when he became aware of this damage, given he'd been staying with his partner. RSA has explained that its internal guidance says ingress of water should be dealt with under storm damage peril. So while I can understand why Mr B might think RSA has been contradictory, I think RSA acted fairly in accepting a claim for the internal kitchen damage under the accidental damage part of Mr B's policy, whilst also declining his claim for a storm damaged roof under the buildings insurance part of his policy.

While not the crux of his complaint, Mr B also raised other points. He thought the surveyor was unprofessional because they used a pole and camera to do their survey, didn't listen to Mr B and didn't provide their findings. As I've already said, the surveyor took clear and detailed pictures upon which to base their findings, so I think their method of inspection was reasonable. And the surveyor has disputed not listening to Mr B and not giving him their findings. I wasn't present at the inspection, so I can't be certain what was said. But even if I were to accept Mr B's version of events, I don't think it changes the outcome here. And I've seen that the day after the inspection, the surveyor sent Mr B a letter to say his claim would be declined, so I'm satisfied the surveyor gave Mr B their findings within a reasonable time.

Mr B thinks RSA should provide recordings of both of his claim calls and seems to suggest RSA made an error by agreeing he could carry out a temporary repair. RSA has provided a recording of the first call but not the second call, which it says didn't record due to technical issues. But RSA has provided the contact notes its agent made at the time of both calls.

Having listened to the call recording and reviewed the contact notes, I don't think RSA made an error in those calls. Its agent listened to Mr B, asked if he had home emergency cover and gave him the home emergency number to call, agreed to set up a buildings insurance claim, explained RSA would send a surveyor to assess damage, and noted Mr B would effect a temporary repair to prevent further damage. While Mr B did wait for RSA to call him back, he's told us it did so within half an hour. That's not an unreasonably long time. And in the first call, Mr B says he thinks the damage was caused by a storm about a month before and that water has been pouring into his kitchen. So I think waiting half an hour is unlikely to have made any significant difference to the damage already caused.

Even if I accepted RSA made some sort of error in those calls, as Mr B suggests, it wouldn't necessarily mean RSA was wrong to later decline Mr B's roof claim. Which I've already said it fairly declined.'

RSA didn't respond to my provisional decision. Mr B provided further comments to say:

- He'd assumed it was storm damage and his use of the word 'storm' was misinterpreted. He accepts weather reports show there wasn't a storm.
- But RSA hasn't considered the geographical positioning of his house – it's on a corner on a main road and without a parapet wall to act as a weather shield. This means light winds can vortex to a high wind, and so he used the word 'storm'.
- RSA had paid the internal kitchen damage claim but did so because there was doubt. And there had been doubt throughout the claim.
- It was concerning the second call wasn't available and call notes aren't a verbatim record. So there is doubt about his claim.
- Mr B was surprised I would say RSA had fairly declined the claim even if RSA had made errors in the calls. He said RSA has made errors, so I should have recommended a compromise. And RSA hasn't responded to Mr B's own offer of a compromise.

I'm now in a position to make my final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, the further comments Mr B has provided don't give me reason to change the conclusions I reached in my provisional decision. I know this will be very disappointing to Mr B, but I'll explain why.

Mr B says RSA should consider that the geographical positioning of his house causes light winds to vortex to high winds. But RSA isn't obliged to consider that. Instead, it's obliged to consider whether the damage to Mr B's kitchen roof was caused by one of the insured events listed in his policy terms and conditions, in this case a storm. And Mr B and RSA are now both in agreement that there wasn't a storm.

And it remains the case that even if I accepted poor weather – whether caused by the specific features of Mr B's property or not - made the roof worse, evidence suggests wear and tear is still the primary cause of the damage to his roof. Wear and tear isn't covered under Mr B's policy, so it was fair for RSA to decline Mr B's roof claim under the buildings

insurance part of his policy. For these reasons, I can't agree with Mr B that there is any doubt about the roof part of his claim.

Mr B has reiterated that RSA made errors in its calls with him, and says contact notes aren't a verbatim record of a call. But for the reasons I explained in my provisional decision, I'm satisfied RSA didn't make any errors in those calls. And Mr B hasn't provided me with enough evidence to change my mind.

Mr B is surprised my provisional decision said that even if I accepted RSA had made an error in the calls, RSA had fairly declined the roof part of his claim. I hope it helps if I explain that if RSA had made an error, then our service would look to put Mr B back into the position he should have been in if RSA hadn't made that error. In this particular case, that position wouldn't be for Mr B to have his claim paid in full. Because, as I've explained, I'm satisfied it was fair of RSA to decline the roof part of Mr B's claim. But in any case, I'm satisfied RSA didn't make an error in the calls.

My final decision

For the reasons set out above, I'm not upholding this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr B to accept or reject my decision before 28 April 2021.

Ailsa Wiltshire
Ombudsman